

25CHCV01741 25CHCV01741

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Case Number: 25CHCV01741 Hearing Date: September 17, 2026 Dept: F46

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MOTION FOR
ATTORNEYS' FEES, COSTS, AND EXPENSES

Motion filed on April 21, 2026.

MOVING PARTY: Plaintiff Hakob Jack Torosyan

RESPONDING PARTY: Defendant FCA US LLC

NOTICE: OK.

RELIEF REQUESTED: Plaintiff requests \$68,700 in fees, consisting of \$45,190 in attorney fees, a \$22,595 enhancement based on a requested 1.5 multiplier, and \$915 in legal-assistant fees, plus \$6,095.91 in costs and expenses. Plaintiff also requests that FCA be ordered to pay the award within 30 days.

RULING: Granted in part. The Court awards \$35,870 in attorney fees and \$6,072.24 in costs and expenses.

BACKGROUND

On May 20, 2025, Plaintiff Hakob Jack Torosyan (Plaintiff) filed this action against Defendants FCA US LLC (FCA), San Fernando Motor Company, and Does 1 through 30 concerning a 2023 Jeep Wrangler. Plaintiff alleges fraud and deceit, breach of written and implied warranties under the Magnuson-Moss Warranty Act and Song-Beverly Consumer Warranty Act, violations of Business and Professions Code sections 17200 and 17500, negligence, and strict liability.

On October 31, 2025, Plaintiff filed a motion to compel the deposition of FCA's person most qualified. Plaintiff withdrew the motion on February 6, 2026.

On February 19, 2026, Plaintiff accepted FCA's Code of Civil Procedure section 998 offer to compromise. (Mot., p. 5.) Under the accepted offer, FCA agreed to pay Plaintiff's attorney fees, costs, and expenses, with the amount to be determined by noticed motion unless the parties reached an agreement. Plaintiff is deemed the prevailing party for purposes of recovering attorney fees, costs, and expenses. (Ibid.)

On February 23, 2026, Plaintiff filed a Notice of Settlement of Entire Case identifying the settlement as conditional. On April 21, 2026, Plaintiff filed the instant Motion and Memorandum of Costs. On May 13, 2026, Plaintiff filed a Motion to Enforce Settlement. Plaintiff subsequently took that motion off calendar. On September 3, 2026, FCA filed an Opposition and the Declaration of Stacey S. Davis. On September 10, 2026, Plaintiff filed a Reply and supporting declaration of Hovanes Margarian.

LEGAL STANDARD

Under Civil Code section 1794, subdivision (d), a prevailing buyer is entitled to an award of reasonable attorney fees and expenses. California courts apply the "lodestar" approach to determine what fees are reasonable. (See, e.g., *Holguin v. DISH Network LLC* (2014) 229 Cal.App.4th 1310, 1332.) This inquiry "begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 (PLCM Group).) From there, the "lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (Ibid.) Relevant factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the

litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 (Ketchum).)

The party seeking fees has the burden of documenting the appropriate hours expended and hourly rates. (City of Colton v. Singletary (2012) 206 Cal.App.4th 751, 784.) Where the prevailing practice is for attorneys to bill separately for paralegal services, reasonable paralegal expenses are awardable as part of the attorney fees. (Guinn v. Dotson (1994) 23 Cal.App.4th 262, 269-270.) A plaintiff may recover reasonable attorney fees based on actual time expended and “reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)

DISCUSSION

Attorney’s Fees

Plaintiff requests \$68,700 in fees, consisting of \$45,190 in attorney fees, a \$22,595 enhancement based on a requested 1.5 multiplier, and \$915 in legal-assistant fees. (Mot. at p. 2.) FCA challenges the hours and rates claimed, requests a 33 percent reduction for non-fee-bearing causes of action, and requests denial of the positive multiplier. FCA ultimately proposes a fee award of no more than \$10,338.10. (Opp. at pp. 11-12.)

Plaintiff represents that under the accepted section 998 offer, FCA agreed to pay Plaintiff’s attorney fees, costs, and expenses, with the amount to be determined by noticed motion unless the parties reached an agreement, and that Plaintiff is the prevailing party for that purpose. (Mot. at p. 5.) FCA disputes the amount recoverable and argues that the requested fees should be denied or substantially reduced based on apportionment and reasonableness. (Opp. at pp. 4-12.) Accordingly, the Court addresses the reasonable amount of fees, costs, and expenses recoverable.

1. Reasonable Hourly Rates

Hovanes Margarian seeks \$650 per hour for work performed through June 30, 2025, and \$750 per hour thereafter. (H. Margarian Decl. ¶¶ 11, 17.) Armen Margarian seeks \$550 per hour through June 30, 2025, and \$670 per hour thereafter. (A. Margarian Decl. ¶¶ 11, 13.) Akop Jack Ter-Saakyan seeks

\$700 per hour. (Ter-Saakyan Decl. ¶ 7.) Patrick Kenneth Kimball seeks \$700 per hour. (Kimball Decl. ¶¶ 9, 13.) Legal assistant Elmira Oganyan seeks \$150 per hour. (H. Margarian Decl. ¶ 56.)

A reasonable hourly rate is the rate prevailing in the community for similar work, and the trial court is the best judge of the value of professional services rendered. (PLCM Group, supra, 22 Cal.4th at p. 1095; Ketchum, supra, 24 Cal.4th at p. 1132.) Rate determinations in other cases, particularly those setting a rate for the plaintiff's attorney, are satisfactory evidence of the prevailing market rate. (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Here, Hovanes Margarian has practiced law for approximately 19 years and has focused nearly exclusively on automotive litigation. (H. Margarian Decl. ¶ 14.) Armen Margarian has approximately nine years of litigation experience substantially focused on automotive and consumer-rights litigation. (A. Margarian Decl. ¶¶ 12, 15.) Ter-Saakyan has more than 16 years of experience handling personal injury, consumer protection, and other areas of law. (Ter-Saakyan Decl. ¶ 3.) Kimball has more than 16 years of experience and represents that he has handled at least 1,000 lemon law matters. (Kimball Decl. ¶¶ 3-4.)

Plaintiff submits evidence of prior rate determinations involving counsel. (H. Margarian Decl. ¶¶ 18-49; A. Margarian Decl. ¶¶ 16-18; Ter-Saakyan Decl. ¶¶ 9-12; Kimball Decl. ¶ 12.) FCA relies on other rulings and contends a reasonable attorney rate is between \$300 and \$400 per hour. (Davis Decl. ¶¶ 23-39.)

The Court is not persuaded that the rates awarded on different records in other matters establish a \$400 ceiling here. The Court finds the requested attorney rates reasonable in light of counsel's experience and the evidence of rate determinations in comparable matters. The Court also finds the \$150 hourly rate requested for Oganyan reasonable.

2. Apportionment

FCA seeks a 33 percent reduction because three of Plaintiff's nine causes of action, fraud and deceit, negligence, and strict liability, do not independently provide for attorney fees. (Opp., pp. 4-5.)

Plaintiff responds that the fee-bearing and non-fee-bearing claims arise from a common core of facts. (Reply, pp. 4-5.)

Attorney fees “need not be apportioned between distinct causes of action where plaintiff’s various claims involve a common core of facts or are based on related legal theories.” (Drouin v. Fleetwood Enterprises (1985) 163 Cal.App.3d 486, 493.) In Drouin, the Court of Appeal affirmed the trial court’s refusal to apportion fees between warranty claims and non-fee-bearing claims where all of the claims arose from the plaintiff’s purchase of a defective vehicle and subsequent efforts to obtain repairs. (Ibid.)

Here, Plaintiff’s claims concern the same vehicle, alleged defects, repair history, and Defendants’ conduct concerning those defects. (Davis Decl. ¶ 4, Ex. A [Compl.].) The Court declines to impose a 33 percent reduction.

3. Time Spent on Litigation

Verified time statements of attorneys, as officers of the court, are entitled to credence in the absence of a clear indication that the records are erroneous. (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc. (2008) 163 Cal.App.4th 550, 563-564.)

Plaintiff seeks compensation for 70.0 hours, consisting of 14.4 hours by Hovanes Margarian, 4.0 hours by Armen Margarian, 44.0 hours by Ter-Saakyan, 1.5 hours by Kimball, and 6.1 hours by Oganyan, for a starting lodestar of \$46,105. (H. Margarian Decl., Ex. A [Summary of Plaintiff’s Attorneys’ Fees].)

The matter involved prefiling investigation, initial disclosures, a retained-expert vehicle inspection, mediation and settlement efforts, and a motion to compel FCA’s person most qualified that was later withdrawn. (H. Margarian Decl., Ex. A.) No depositions were taken, no discovery

motion was adjudicated, no law-and-motion hearing occurred, and no trial preparation was performed. (Opp., p. 2.)

FCA seeks to strike 2.7 hours of prefiling research and a preliminary vehicle inspection. (Opp., pp. 5-6.) Ter-Saakyan billed 0.8 hour researching warranties, defects, recalls, and technical service bulletins, 0.9 hour researching similar cases and investigations, and 1.0 hour conducting a preliminary inspection and test drive. (H. Margarian Decl., Ex. A [4/14/25, 4/29/25, and 5/12/25 entries].) Plaintiff explains that the work was undertaken to evaluate case viability and potential claims before filing. (Reply, pp. 6-7.) The Court finds the limited prefiling investigation reasonable.

FCA also seeks to strike 5.9 hours associated with Plaintiff's motion to compel deposition because the motion was withdrawn without adjudication. (Opp., pp. 7-8.) Counsel billed 3.7 hours to research and prepare the motion, 0.9 hour for Hovanes Margarian to review the motion papers, 1.0 hour of legal-assistant time to reserve the hearing and proofread the motion, and 0.3 hour to prepare the withdrawal. (Davis Decl. ¶¶ 16-17; H. Margarian Decl., Ex. A [10/24/25, 10/27/25, 10/28/25, 10/31/25, and 2/6/26 entries].) Plaintiff filed the motion on October 31, 2025 and withdrew it on February 6, 2026, after FCA extended its section 998 offer. (Register of Actions [10/31/25, 2/6/26].) The subsequent withdrawal does not establish that the work was unreasonable when performed. The 0.3 hour incurred to withdraw the motion after resolution of the action was likewise reasonable. The Court declines to strike the time associated with the motion to compel.

FCA further challenges the second deposition notice, default and initial-disclosure communications, post-settlement follow-up emails, and a mediation debrief. (Opp., pp. 6-7.) The second deposition notice reflected a rescheduled deposition date. (H. Margarian Decl., Ex. A [6/19/25 and 8/4/25 entries].) The default and initial-disclosure communications occurred on separate dates concerning unresolved matters. (H. Margarian Decl., Ex. A [7/18/25, 8/4/25, 10/28/25, 10/29/25, 10/31/25, 11/3/25, and 11/5/25 entries].) The post-settlement communications concerned surrender, reimbursement, or fee resolution and were billed in 0.1-hour increments. (H. Margarian Decl., Ex. A [3/4/26, 3/11/26, 3/16/26, 3/19/26, 3/30/26, 4/6/26, 4/7/26, 4/14/26, and 4/16/26 entries].) Armen Margarian billed 0.3 hour to discuss the mediation results with lead counsel. (H. Margarian Decl., Ex. A [11/3/25 entry].) The Court finds these limited entries reasonable.

FCA also seeks a 50 percent reduction of the 2.8 hours billed for communications with Plaintiff. (Opp., p. 7.) The entries total 2.8 hours over approximately one year. (H. Margarian Decl., Ex. A [§ 3, Client Communication].) The Court finds the amount modest and declines the reduction.

FCA challenges 1.0 hour of Oganyan's work related to the motion to compel and 0.9 estimated hour to proofread the Reply. (Opp., pp. 7-9.) Oganyan's motion-related work included reserving the hearing and proofreading the motion. (H. Margarian Decl., Ex. A [10/31/25 EO entries].) The Reply was filed on September 10, 2026. (Register of Actions [9/10/26].) Given the work performed, the modest time claimed, and Oganyan's \$150 hourly rate, the Court allows her requested \$915 in full.

Fees incurred preparing and defending a fee motion are compensable. (Ketchum, supra, 24 Cal.4th at p. 1141.) The Court nevertheless finds the 16.9 attorney hours claimed for the fee-motion stage excessive given counsel's substantial experience with Song-Beverly fee motions and the recurring nature of the issues presented. (H. Margarian Decl., Ex. A [§ 4, Hours Spent on the Motion for Attorneys' Fees, Costs, and Expenses].) The Court therefore makes the following targeted reductions:

Date/Category

Timekeeper

Hours Billed

Hours Allowed/Reason

Administrative entries concerning notices, service, proofs of service, reassignment, jury fees, and OSC administration

AJT

1.8

0.5 hours allowed. The entries principally concern receipt and notation of court notices, service administration, proofs of service, reassignment administration, jury-fee administration, and review of the OSC order. (H. Margarian Decl., Ex. A [5/21/25, 5/22/25, 5/28/25, 8/19/25,

8/24/25, 10/30/25, and 2/24/26 entries].) The Court allows 0.5 hour for limited attorney review and oversight.

3/30/26 fee calculation

AJT

1.5

1.0 hour allowed. Ter-Saakyan reviewed the file, documents, time entries, and communications and calculated the approximate fees, costs, and expenses. (H. Margarian Decl., Ex. A [3/30/26 entry].) The Court finds 1.0 hour reasonable given counsel's experience and the separate detailed billing breakdown later prepared for this Motion.

Estimated April 24, 2026 OSC appearance and Request for Dismissal

HM

1.4

0 hours allowed. The billing records identify 1.0 estimated hour for preparation for and attendance at the April 24, 2026 OSC and 0.4 estimated hour for preparation of a Request for Dismissal. (H. Margarian Decl., Ex. A [estimated OSC and dismissal entries].) The April 24 minute order reflects that Eric Alizade appeared for Plaintiff. (4/24/26 Minute Order.) No Request for Dismissal appears in the submitted Register of Actions through September 10, 2026. (Register of Actions [through 9/10/26].) The record therefore does not establish that Hovanes Margarian actually incurred either estimated entry.

Fee-motion stage

AJT

6.0

2.0 hours allowed. Ter-Saakyan billed 3.0 hours preparing his billing breakdown, 2.5 hours preparing the Motion package, and 0.5 hour

preparing his declaration. (H. Margarian Decl., Ex. A [4/20/26 and 4/21/26 entries].) The Court allows 0.5 hour for the breakdown, 1.0 hour for the Motion package, and 0.5 hour for the declaration.

Fee-motion stage

HM

9.2

3.0 hours allowed. Margarian's entries include his billing breakdown and declaration, review of the Motion package, estimated Opposition and Reply work, and 2.5 estimated hearing hours. (H. Margarian Decl., Ex. A [4/20/26, 4/21/26, and estimated fee-motion entries].) The Reply declaration does not provide actual replacement figures for the originally estimated Opposition and Reply entries. (H. Margarian Reply Decl. ¶¶ 1-14.) The Court allows 3.0 hours for this stage.

Fee-motion stage

AM

1.0

0.5 hour allowed. Armen Margarian billed 0.5 hour for his billing breakdown and 0.5 hour for his declaration. (H. Margarian Decl., Ex. A [4/20/26 and 4/21/26 entries].) The Court allows the declaration time.

Fee-motion stage

PK

0.7

0.5 hour allowed. Kimball billed 0.2 hour for his billing breakdown and 0.5 hour for his declaration. (H. Margarian Decl., Ex. A [4/20/26 and 4/21/26 entries].) The Court allows the declaration time.

The total reduction in Ter-Saakyan's time is 5.8 hours at \$700 per hour, or \$4,060. The total reduction in Hovanes Margarian's time is

7.6 hours, all billed at the post-July 1, 2025 rate of \$750 per hour, or \$5,700. The total reduction in Armen Margarian's time is 0.5 hour at \$670 per hour, or \$335. The total reduction in Kimball's time is 0.2 hour at \$700 per hour, or \$140. The Court makes no reduction to Oganyan's 6.1 hours. The total reduction from the \$46,105 starting lodestar is therefore \$10,235.

4. Multiplier

The lodestar amount “may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (*Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1399, citing *Ketchum*, supra, 24 Cal.4th at p. 1132.) The purpose of any lodestar enhancement is to approximate market-level compensation for the services performed and is discretionary. (*Ibid.*) “The purpose of a fee enhancement is not to reward attorneys for litigating certain kinds of cases, but to fix a reasonable fee in a particular action.” (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1171-1172.)

Plaintiff seeks a 1.5 multiplier based on the result obtained, contingency risk, and delay in payment. (Mot., pp. 16-19; Reply, pp. 10-11.) Plaintiff acknowledges that the case did not involve novel legal issues or unusual complexity. (Reply, p. 10.)

The Court finds that the result obtained does not warrant a multiplier. The case did not involve depositions, dispositive motion practice, adjudicated discovery motions, pretrial motions, or trial preparation. The matter resolved through Plaintiff's acceptance of FCA's section 998 offer approximately nine months after filing. The favorable result reflects competent representation rather than uniquely exceptional advocacy.

The contingent-risk factor is also substantially reflected in the approved rates. Hovanes Margarian charges lower rates for noncontingency matters, as do Armen Margarian, Ter-Saakyan, and Kimball. (H. Margarian Decl. ¶¶ 16-17; A. Margarian Decl. ¶¶ 11-13; Ter-Saakyan Decl. ¶ 7; Kimball Decl. ¶¶ 9-10.) The asserted delay in payment does not warrant an additional enhancement on this record. The Court denies the 1.5 multiplier.

FCA's request for a negative multiplier is also denied. The

Iodestar approved by the Court, based on actual hours reasonably expended after targeted reductions for administrative, estimated, and excessive entries, already reflects the limited scope and standard nature of this litigation.

After applying the reductions identified above to the \$46,105 starting Iodestar, the Court grants Plaintiff's request for attorney fees in the amount of \$35,870, calculated as follows: Hovanes Margarian, 1.4 hours $\times$ \$650 = \$910, plus 5.4 hours $\times$ \$750 = \$4,050, for a total of \$4,960; Armen Margarian, 3.5 hours $\times$ \$670 = \$2,345; Ter-Saakyan, 38.2 hours $\times$ \$700 = \$26,740; Kimball, 1.3 hours $\times$ \$700 = \$910; and Oganyan, 6.1 hours $\times$ \$150 = \$915.

Costs and Expenses

Plaintiff seeks \$6,095.91 in costs and expenses, consisting of \$798.01 in filing and motion fees, \$150 in jury fees, \$4,520.90 in expert-witness fees, \$27 in electronic filing or service fees, and \$600 in mediation expenses. (Mem. Costs, Summary and Worksheet.) FCA does not identify a specific cost item it seeks to tax. (Opp., p. 12.)

Attachment 1g includes a \$23.67 estimated filing fee for a future Request for Dismissal. (Mem. Costs, Attachment 1g.) No Request for Dismissal appears in the submitted Register of Actions through September 10, 2026. (Register of Actions [through 9/10/26].) The record therefore does not establish that the estimated cost has been incurred. The Court reduces the requested costs by \$23.67 and awards \$6,072.24.

The Court reduces the requested costs by \$23.67 and awards \$6,072.24.

CONCLUSION

The Court GRANTS IN PART Plaintiff's Motion for Attorneys' Fees, Costs, and Expenses. The Court awards \$35,870 in attorney fees and \$6,072.24 in costs and expenses, for a total award of \$41,942.24.

Plaintiff's request for a 1.5 Iodestar multiplier is denied. FCA's request for a negative multiplier and its requested 33 percent apportionment reduction are denied.